



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 08/28/2026 - 09:00 AM

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4:30 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

**IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA IN AND FOR THE COUNTY
OF SAN MATEO**

Probate

Department 13

Courtroom 2C

Hon. Lisa A. Novak

August 28, 2026 - 9:00 AM

If an appearance by Zoom is allowed, parties must appear through Zoom Video.

Zoom Audio is only to be used if Zoom Video is unavailable.

Please check in with the clerk by 8:45 AM.

Zoom Video/Audio Information	Zoom Phone-Audio Only Information Please Note: You must join by dialing in from a telephone; credentials will not work from a tablet or PC
<u>Click on this link to join the Zoom meeting (no meeting ID or passcode required):</u> Meeting ID: 161 920 9458 PASSWORD: 696850	Phone number: 1 (669) 254-5252 Meeting ID: 161 920 9458 PASSWORD: 696850

If a tentative ruling contains "APPEARANCE ORDERED", failure to appear may cause the Petition to be denied or Opposition stricken. Remote appearance is allowed BUT FOR all matters in which SIJF are sought, and where the Court has ordered an In Person appearance. Failure to appear may result in sanctions.

If a tentative ruling contains "APPEARANCE OPTIONAL", failure to appear is a waiver of oral argument and the Court may issue orders differing from the tentative ruling. Zoom is allowed for all optional appearances.

If a tentative ruling contains "NO APPEARANCE", an appearance is not required, as the matter has been pre-approved, continued, or dropped, as described.

If you wish to appear in response to the tentative ruling or in opposition to a petition, you must notify the probate clerk at dept13@sanmateocourt.org and all other parties of the intent to appear. All notifications must be completed no later than 4:00 p.m. on the court day immediately preceding the day of the hearing.



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16-PRO-00117	Conservatorship of KAREN SUE JACOBSON	SEVENTH TRUST ACCOUNT OF BAYLA JACOBSON TRUST AND SEVENTH TRUST ACCOUNT OF RESTATED KAREN JACOBSON IRREVOCABLE SPECIAL NEEDS TRUST, PETITION FOR SETTLEMENT OF SEVENTH ACCOUNTS, SEVENTH STATUS REPORT, MODIFICATION OF BOND FOR RESTATED KAREN JACOBSON I
Line 1	Proposed Conservatee: JACOBSON, KAREN SUE Petitioner: CHOWDHURY, AL (PACKARD, DAVID R.) Conservatee: JACOBSON, KAREN SUE Conservator: CHOWDHURY, AL (PACKARD, DAVID R.) Sister: Jacobson, Andrea	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

The Court has reviewed the objection to its previous tentative ruling of July 13, 2026. The Court does not find it persuasive. The objection asserts that, at the March hearing, this court found that the Conservator was acting in the Conservatee's best interest. The Court made no such finding. The court stated that the hourly rate was reasonable and that the Conservator was dedicated to the well-being of the Conservatee, but that is a far cry from making any finding that he was acting in her best interest. Having a reasonable hourly rate does not forgo the possibility that said hourly rate is being over-applied, as it appears it is from what the court has reviewed. The fact that the court, in previous years, has approved accountings in no way influences what this court sees in its review for the present accounting. The objection correctly identifies an error in the previous TR, however, which appears to be a typographical error. The court stands corrected that Conservator is seeking payment of \$101,050, not \$111,050. This matter will be continued so that the court investigator's office can have sufficient time to review again the Conservator's billings in light of the concerns raised by the court and the information provided in Conservator's most recent filing/objection. The Court Investigator shall file a report documenting its findings and making any recommendations it believes is warranted based upon its review. The Court re-appoints Julia Lyngis as independent counsel for the Conservatee. In the interim, the Conservator is ordered not to utilize any personal credit card or personal funds for the purchase of any necessities or incidentals for the Conservatee. The matter is continued to October 29, 2026 at 9:00 a.m.



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20-PRO-01706-B	IN THE MATTER OF: JOHN BINDER 2019 TRUST	Status of Settlement
Line 2	Petitioner: Binder, Melinda (ROSENFELD, RACHEL H) Respondent: Binder-Paulbitski, Marimart (FORBES, JAMES R.) Decedent: Binder, John	Status Hearing
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) Parties to appear to provide status of settlement and filing notice thereof.		

22-PRO-00037	Estate of VICTORIO S. ROXAS	AMENDED* FIRST AND FINAL REPORT OF ADMINISTRATOR ON WAIVER OF ACCOUNT AND PETITION FOR FINAL DISTRIBUTION- Continued from 06/26/26
Line 3	Petitioner: ROXAS, EDGAR A. (Pro Se) Decedent: ROXAS, VICTORIO S. Personal Representative: ROXAS, EDGAR A. Proposed Personal Representative: ROXAS, EDGAR A.	Petition for Final Distribution
Tentative Ruling: NO APPEARANCE Amended Petition for Final Distribution is GRANTED absent cogent objection.		

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23-PRO-01367	Estate of LeRoy Tobias Character	RE: Status of Petitioner's Declaration and for Parties to Complete Mediation
Line 4 [related to Line 6]	Petitioner: Wagner-Character, Patsy (FRAZEE, AMY E.) Decedent: Character, LeRoy Tobias Respondent: CHARACTER, MAURICE A. (HAYDT, ZACHARIAH) Interested Party: MAHONEY, FRANK W., III Personal Representative: Wagner-Character, Patsy (FRAZEE, AMY E.) Participant: Probate Advance, LLC (Pro Se KATZ, SARA VICTORIA) Proposed Personal Representative: Wagner-Character, Patsy (FRAZEE, AMY E.) Assignee: Approved Inheritance Cash, Inc.	Status Hearing
Tentative Ruling: APPEARANCE OPTIONAL [Related matters at lines 4 and 6] The previously-ordered declaration of attorney Frazee has been filed. This will be continued to February 2, 2027 essentially to trail the Petition for Spousal Property at line 6.		

24-PRO-00719	Conservatorship of LouAnn Darleen Ghiozzi	RE: Status of Filing of Objection
Line 5	Proposed Conservatee: Ghiozzi, LouAnn Darleen (MARTIN, ALEXANDRA R. GRUBER, JOSEPH E., JR) Petitioner: BUCKMASTER, LISA (FLETCHER, ROBERT S DERIEG, GEORGE M.) Petitioner: Ghiozzi, Aldo Anthony (FLETCHER, ROBERT S DERIEG, GEORGE M.) Petitioner: GHIOZZI, MICHAEL (FLETCHER, ROBERT S DERIEG, GEORGE M.) Proposed Conservator: Ghiozzi, Aldo Anthony (FLETCHER, ROBERT S DERIEG, GEORGE M.)	Status Hearing
Tentative Ruling: APPEARANCE ORDERED (Zoom allowed) Parties to appear, as no objections have been filed. The Court vacates the 11/9/2026 hearing date for the Motion to Request Extension of Appointment of Co-Trustee which was advanced to 7/16/2026, then continued to 8/28/2026. If LouAnn Ghiozzi does not appear, nor have an attorney appear on her behalf, the court will likely confirm the September 10 th trial date, and grant the		



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request made in the status report to proceed by way of declaration. However, should LouAnn Ghiozzi appear at trial, the court will afford her the opportunity to cross-examine any declarant whom the petitioners wish the Court to consider as admissible evidence in support of the petition.

25-PRO-00318	ESTATE OF LEROY TOBIAS CHARACTER	RE: Status of Filing of Objection to Amended Spousal Property Petition
Line 6 [related to Line 4]	Petitioner: Wagner-Character, Patsy (MARTIN, JOHN C. FRAZEE, AMY E.) Decedent: Character, LeRoy Tobias Objector: Character, Maurice (HAYDT, ZACHARIAH) Objector: Probate Advance, LLC (BLUT, ELLIOT S KATZ, SARA VICTORIA)	Status Hearing

Tentative Ruling:

APPEARANCE OPTIONAL [Related matters at lines 4 and 6]

Amended Spousal Property Petition is CONTINUED to February 2, 2027 at 9:00 am for status of mediation and potential trial setting. Parties are ordered to file status reports ten (10) days before the next hearing.



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25-PRO-00586	Estate of Janean Ross	Petition for Final Distribution on Waiver of Accounting; Final Report of Status of Administration of Administrator and Petition for Settlement Thereof; for Allowance of Statutory Attorney's and Administrator's Compensation; and for Reimbursement of Co
Line 7	Petitioner: Decaro, Anthony (LOUIE, JASON) Decedent: Ross, Janean Personal Representative: Decaro, Anthony Assignee: Inheritance Funding Company	Petition for Final Distribution

Tentative Ruling:

NO APPEARANCE

Petition for Final Distribution is GRANTED absent cogent objection.

25-PRO-00931	Estate of Yola Eleanor Marsh	PETITION FOR FINAL DISTRIBUTION WAIVER OF ACCOUNTING AND FOR ALLOWANCE OF ATTORNEY'S STATUTORY COMPENSATION REIMBURSEMENT OF EXPENSES PAID BY EXECUTOR AND EXECUTOR'S STATUTORY COMPENSATION
Line 8	Petitioner: Pniower, Frank (KOSTRZEWA, KATE D.) Decedent: Marsh, Yola Eleanor Personal Representative: Pniower, Frank Claimant: AT&T MOBILITY Claimant: EIS ON BEHALF OF CAPITAL ONE, N.A. SUCCESSOR BY MERGER TO DISCOVER BANK	Petition for Final Distribution



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Claimant: PACIFIC GAS AND ELECTRIC COMPANY
Claimant: Phillips & Cohen Associates, Ltd

Tentative Ruling:

APPEARANCE OPTIONAL

Counsel has failed to comply with LR 4.56, which requires in relevant part: "...the decree of distribution must set forth specifically the manner in which the estate is to be distributed by showing the distributee's name and a description of the property or cash, including bank account location, number and amount, to be distributed." Simply stating that the total sum is to be distributed 50% each to the named individuals is not in compliance. Counsel is admonished in the future to comply with all local rules. The Court does not wish to unnecessarily delay distribution to the heirs because of counsel's failure, so the Court will waive that deficiency this one time. Additionally, however, the calculation of statutory compensation to both the administrator and the attorney is wrong because for some reason the calculation relied on a number that exceeds what the estate value is. The Court has corrected that error as well. Counsel will have to submit a modified order which comports to the court's ruling which is as follows:

Petition for Final Distribution is GRANTED as modified, with each heir, Shelly Pniower and Terry Marsh, to receive \$587,755.00. The order submitted shall identify the manner in which each heir will receive their share, drawn from which bank account(s). Statutory compensation to both the administrator and attorney of \$28,647.84 is awarded [corrected from the amount sought in petition of \$28,885.03]

25-PRO-00934 Estate of Cathleen Muriel Gentry

Petition for Final Distribution on Waiver of Account, Report of Administrator and for Allowance of Statutory Attorney's Fees

Line 9

Petitioner: Hudlin, Carol M. (KRUEGER, KERRY L.)
Decedent: Gentry, Cathleen Muriel
Interested Party: STATE OF CALIFORNIA FRANCHISE TAX BOARD
Personal Representative: Hudlin, Carol M.
Claimant: ASCENSIONPOINT RECOVER SERVICES LLC
Claimant: STATE OF CALIFORNIA FRANCHISE TAX BOARD

Petition for Final Distribution



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Tentative Ruling:

NO APPEARANCE

Petition for Final Distribution is GRANTED absent cogent objection. Formal order required.

25-PRO-01041	Conservatorship of Santiago Alonso Juarez Soto	Continued from 07/16/26
Line 10	Proposed Conservatee: Juarez Soto, Santiago Alonso Petitioner: Soto Gordillo, Teresa (SUN, LIYING SBROCCA, DOMINIC) Conservatee: Juarez Soto, Santiago Alonso Conservator: Rodriguez, Alonso Juarez (SUN, LIYING) Conservator: Soto Gordillo, Teresa (SUN, LIYING)	General Plan

Tentative Ruling:

APPEARANCE ORDERED (Zoom allowed)

Conservators are ordered to appear and explain why the Confidential Conservatorship Care Plan Parts 1&2 (forms GC-355 & GC- 356) have not been filed. If Conservators fails to appear or they appear and fail to file these forms, the Court intends to issue an order to show cause to Teresa Soto Gordillo and Alonso Juarez Rodriguez as to why they should not be sanctioned/removed as Conservators, and/or sanctioned.



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26-PRO-00372	IN RE THE ERICA D. ADAMS 2025 REVOCABLE TRUST DATED AUGUST 22, 2025	Petition for Order Confirming Title to Trust Assets
Line 11	Petitioner: Adams, David Raymon (PENCE, BRUCE A., III) Decedent: ADAMS, ERICA D	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

San Mateo County is not the proper venue for this petition. As is set forth in the petition itself, the successor Trustee, who lives in New Jersey, administers the Trust through the office of his attorney, Bruce A. Pence III, in San Luis Obispo County, California. Counsel is mistaken that the probate code is silent on this issue, as PrC 17005(a)(2) clearly states that proper venue is, "in the case of a testamentary trust, either the county where the decedent's estate is administered or where the principal place of administration of the trust is located." Decedent's estate is not being administered in San Mateo County, and counsel's argument in paragraph 11, that "however, if the Decedent's estate were probated the proper county for the administration of the estate would be San Mateo County under Probate Code §7051" is not persuasive. The proper county for this petition is San Luis Obispo. The petition is DENIED.

26-PRO-00569	Estate of Patricia Irene Fields Sorensen	Continued on 06/05/2026
Line 12	Petitioner: Dunn, John Carlton (MARGARITA, VIENNEAU) Decedent: Sorensen, Patricia Irene Fields Proposed Personal Representative: Dunn, John Carlton Claimant: WELLS FARGO BANK, NA	Probate of Will and Letters Testamentary Hearing w/ ATA

Tentative Ruling:

NO APPEARANCE

The amended petition will be GRANTED absent cogent objection.



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26-PRO-00639-A	Estate of ADRIANA KARWICK LARKIN	
Line 13 [related to line 15 & 16]	Petitioner: KARWICK, GILBERT E. (Pro Se) Decedent: LARKIN, ADRIANA KARWICK Personal Representative: KARWICK, GILBERT E.	Letters of Administration Hearing with ATA
Tentative Ruling: APPEARANCE ORDERED There is no proof of publication, and item 2b is left blank. However, the Court would like for Petitioner to appear and explain who Corey Pollack, to whom a proof of service was filed, is in relation to the estate, as well as why this petition is filed more than 5 years after decedent's passing.		

PRO096675	ESTATE OF EDNA MENICUCCI	THIRTEENTH ACCOUNT AND REPORT OF TRUSTEE; PETITION FOR18 APPROVAL OF ACCOUNT; AND FOR ALLOWANCE OF TRUSTEE'S FEES (September 1, 202419 through August 31, 2025, inclusive)
Line 14	Petitioner: BYRNE, DANIEL (BYRNE, DANIEL) Petitioner: Levavi, Monica J Petitioner: MENICUCCI, THOMAS L. (LEVY, RAYMOND H) Decedent: MENICUCCI, EDNA Trustee: LEVY, RAYMOND H. (LEVY, RAYMOND H) Trustee: O'KEEFFE, GREGORY (LEVY, RAYMOND H) Payor: Payor	Petition Hearing
Tentative Ruling: NO APPEARANCE Thirteenth Account and Report of Trustee; Petition for Approval of Account; and for Allowance of Trustee's Fees as amended is GRANTED absent cogent objection.		

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PRO116667-B	Estate of Diane Mary Karwick	
Line 15 [related to line 13 & 16]	Petitioner: KARWICK, GILBERT E. (Pro Se) Decedent: Karwick, Diane Mary Proposed Personal Representative: KARWICK, GILBERT	Letters of Administration Hearing with ATA
Tentative Ruling: APPEARANCE ORDERED Petitioner is to appear and explain why he is seeking to be appointed as successor administrator to a matter which apparently was opened for probate almost 20 years ago. The Court is unclear as to what extent the estate was administered when letters were first issued.		

PRO116668-B	Estate of EDWARD ANTHONY KARWICK	
Line 16 [RELATED TO LINES 13 AND 15]	Petitioner: KARWICK, GILBERT E. (Pro Se) Decedent: KARWICK, EDWARD ANTHONY Proposed Personal Representative: KARWICK, GILBERT E.	Letters of Administration Hearing with ATA
Tentative Ruling: APPEARANCE ORDERED Petitioner is to appear and explain why he is seeking to be appointed as successor administrator to a matter which apparently was opened for probate almost 20 years ago. The Court is unclear as to what extent the estate was administered when letters were first issued.		

PRO125471	CONSERVATORSHIP OF STEVEN WALLACE EIB	* on 1/30/2026 Hearing Type changed from CRAB to CRB SIXTH BIENNIAL REVIEW PETITION FOR ORDER FOR PAYMENT OF FEES FOR CONSERVATORSHIP OF PERSON AND ESTATE
Line 17, 18	Conservatee: EIB, STEVEN WALLACE Conservator: SAN MATEO COUNTY PUBLIC GUARDIAN (SAN MATEO COUNTY ATTORNEY'S OFFICE) Sister: PRICE, TERI	Conservatorship Review - Biennial



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Accounting (Biennial)
Conservator and Petition for
Settlement

Tentative Ruling:

NO APPEARANCE

The conservatorship shall continue and be reviewed in two (2) years. The request to waive account is approved. The fees requested by the conservator and counsel for the conservator are ordered and deferred until the Court determines sufficient funds exist. The assessment amount of \$850.00 for the cost of the court's investigation is ordered and deferred until the Court determines sufficient funds exist.

Hearings Total: 18